

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Workers' Compensation and Rehabilitation Act 2003 (Qld)

Matter No: WC/2024/227

CORY LEA SHEPHERD (Appellant) and WORKERS' COMPENSATION REGULATOR (Respondent)

Non-party: METRO SOUTH HOSPITAL AND HEALTH SERVICE ("MSH")

DRAFT ORDER

UPON the Appellant's application dated 12 June 2026 under rule 64G(1) of the Industrial Relations (Tribunals) Rules 2011 for a decision about the objection of MSH dated 5 June 2026 to the Appellant's Form 29 – Notice of Non-Party Disclosure sealed 22 April 2026 ("the Notice"), THE COMMISSION ORDERS THAT:

1. The objections of MSH to Items 3(a), 3(b), 8, 9, 10 and 19 of the Notice are overruled.
2. Within fourteen (14) days of this Order, MSH produce the documents described in Schedule A to the application (items 1 to 6), in native electronic format where the record is electronic.
3. Within fourteen (14) days of this Order, MSH produce the spreadsheet of recorded MET calls for the period 17–18 March 2024 identified in its response to Items 1 and 2 of the Notice.
4. Documents produced in answer to Items 8 and 9 of the Notice:
 - (a) be produced to the Industrial Registry and marked "Confidential";
 - (b) be inspected only by the parties and their representatives, and only for the purposes of this proceeding;
 - (c) be used only for the purposes of this proceeding; and
 - (d) be confined to credential, date and time-stamp fields, with any non-responsive personal information redacted.
5. Order 1, so far as it concerns Item 19, takes effect seven (7) days after the Appellant gives written notice of this Order to Together Queensland. Together Queensland has liberty to apply within that period.
6. Pursuant to rule 64G(2), within fourteen (14) days of this Order, MSH file and serve an affidavit, or affidavits, of an officer or officers with direct knowledge of the searches undertaken and of the relevant governance arrangements, which:
 - (a) verifies MSH's statements that documents responsive to Items 1–2 (non-retention following the SPOK upgrade), 3(c), 4, 5, 7, 14 and 20 of the Notice do not exist or are not in its possession or control, identifying in each case the systems searched, the searches undertaken, and the basis for the statement;
 - (b) identifies, as to Items 4, 5 and 7, the governance registers, policy repositories and training records searched, the result of those searches, and whether those searches identified any fatigue risk management training requirement, fatigue risk management assessment process, or other fatigue-management requirement applying to Logan Hospital Switchboard staff before 30 June 2024;
 - (c) states, as to Item 20, should non-possession or non-existence be maintained, the precise basis on which that position is maintained having regard to the correspondence at Annexure C of the application;
 - (d) states, as to Item 14, the date on which a Queensland Health mobile device was issued to the Line Manager and whether any responsive communications exist on MSH systems;
 - (e) identifies, as to Item 16, the process references to which the enclosures produced under that Item correspond; and
 - (f) confirms, as to Item 18, MSH's statement that the destruction of the record is conceded on the pleadings, production under that Item not otherwise being pressed.
7. Each party bear its own costs of the application, in accordance with rule 64G(3).
8. The parties and MSH have liberty to apply, on three (3) days' written notice, as to the mechanics of production under this Order.

Dated:

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Industrial Commissioner